



Barnsley Corporation Act 1969

CHAPTER xi

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ELIZABETH II



1969 CHAPTER xi

An Act to make further provision with respect to the market undertaking of the mayor, aldermen and burgesses of the county borough of Barnsley; and for purposes connected therewith. [24th April 1969]

WHEREAS—

(1) The borough of Barnsley (hereafter referred to as "the borough") is a county borough under the government of the mayor, aldermen and burgesses of the borough (hereafter called "the Corporation");

(2) The Corporation are the owners of a market undertaking carried on upon various sites within the borough pursuant to—

(a) a Charter granted on the 6th February, 1249, by His late Majesty King Henry III to the Prior and Convent of Pontefract, which by virtue of subsequent acts in the law and events became vested in the Dukes of Leeds for the time being;

(b) an Indenture dated the 12th June, 1861, and made between Viscount Nevill Frederick Ascham Millbank,

Sir James Fergusson and Joseph Henry Hudson, the one part and the Local Board of Health for the District of the Township of Barnsley of the other part, whereby the market rights of the Dukes of Devonshire in the borough (as then existing) were conveyed to the said Local Board, such Indenture being entered into pursuant to powers contained in section LXXIV of the Act of Commissioners (may purchase other Hereditaments with the Consent of Inhabitants) of an Act of 3 George IV cap. xxv intituled "An Act for lighting, paving, cleaning, watching, and improving the Town of Barnsley, in the West Riding of the County of York";

(c) other provisions contained in subsequent local enactments relating to the borough;

1955 c. 16.
(4 & 5 Eliz. 2.) (3) In connection with the Corporation's intention to provide new accommodation for the carrying on of part or parts of the market undertaking it is expedient to apply to that undertaking the public general enactments in relation to markets contained in the Food and Drugs Act 1955 and now in force and to make such provision in relation to that undertaking as in this Act provided.

(4) It is expedient that the other provisions contained in this Act should be enacted;

(5) The purposes of this Act cannot be effected without the authority of Parliament;

1933 c. 51. (6) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed.

May it therefore please Your Majesty that it may be so enacted, and be it enacted, by the Queen's most Excellent Majesty, with the advice and consent of the Lords Spiritual and Temporal and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short and
collective
titles.

1. (1) This Act may be cited as the Barnsley Corporation Act 1969.

(2) The Barnsley Corporation Acts and Orders 1822 to 1969 and this Act may be cited together as the Barnsley Corporation Acts and Orders 1822 to 1969.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires—

" the Act of 1955 " means the Food and Drugs Act 1955;

" the borough " means the county borough of Barnsley.

"the Corporation" means the mayor, aldermen and burgesses of the borough;

"enactment" includes an enactment in this Act or in any general or local Act or any order, byelaw, scheme or regulation for the time being in force within the borough;

"the market undertaking" means the undertaking of the Corporation comprising any market from time to time carried on by them within the borough and "market" shall be construed accordingly;

"the Minister" means the Minister of Housing and Local Government.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

3.—(1) The market undertaking as it exists on the passing of this Act shall continue vested in, and be held, used and enjoyed by, the Corporation.

(2) Notwithstanding the provisions of subsection (1) of this section, the Corporation shall be a market authority for the purposes of sections 51 to 61 of the Act of 1955.

4. The Corporation may, upon any lands within the borough for the time being belonging to them and used or proposed to be used for the purposes of the market undertaking—

(a) continue any market carried on by them immediately before the commencement of this Act;

(b) from time to time alter the place or places in which the market or any part or parts thereof is or are held and in connection with any such alteration terminate the use of any land for the purpose of the market;

(c) lay out and improve such lands and erect, alter, enlarge, improve, demolish, reconstruct or rebuild and maintain market halls and other buildings, works and conveniences;

(d) provide, maintain and let on hire movable stalls, trestles and stands;

(e) do all such other acts that may be necessary or proper for the purposes of or in connection with the market undertaking;

(f) make such charges as they think fit for the use of any facilities and equipment provided under this section:

Continuation of market undertaking and application of Act of 1955 thereto

Powers of Corporation in connection with market.

S.I. 1963.704.

- (A) development authorised by this section shall not be deemed for the purposes of the Town and Country Planning General Development Order 1963 to be development authorised by an Act which designates specifically the nature of the development and the land upon which it may be carried out;
- (B) the powers of the Corporation under paragraph (1) of this section shall not be exercisable in such a manner as—
- (i) as to be at variance with any trust subsisting in respect of which any land or building is held, managed or controlled by the Corporation, without an order of the High Court, or of the Charity Commissioners, or of the Secretary of State, and, where the instrument reserves to the donor, or any other person, the power to vary the trust, without the consent of the donor or that other person; or
- (ii) as to contravene a covenant or condition to which a gift or lease of land or a building has been accepted by, or granted to, the Corporation without the consent of the donor, grantor, or other person entitled in law to the benefit of the covenant or condition;
- (C) the powers of the Corporation under paragraph (1) of this section shall not be exercisable in respect of statutory tolls and charges which the Minister is empowered to approve under section 52 of the Act of 1955.

5.—(1) The Corporation may lease or agree to lease, on such terms and conditions as the Corporation shall think fit, any land or building situated in the market, either at a rent or on a fine, or both, for any term not exceeding ninety-nine years.

6. —(1) The Corporation may enter into a composition with any person with respect to the payment of any tolls or charges levied by the Minister under section 52 of the Act of 1955 or levied pursuant to paragraph (f) of section 4 (Powers of Corporation in connection with market) of this Act.

(2) The Corporation may, if they think fit, include in such composition an allowance by way of discount with respect to any such tolls or charges.

(3) In the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

7. If any tenant, stallholder or occupier shall not after any stallages, rents or tolls have become due and payable to the Corporation in respect of any stall, standing place, bench, cellar or other convenience in any market house, market hall or market place belonging to the Corporation and after demand has subsequently been made therefor pay the same within three days of the demand the Corporation may enter upon and take possession of such stall, standing place, bench, cellar or other convenience and re-let the same without prejudice to any other remedy for the recovery of such stallages, rents or tolls.

Power to take possession of stalls for non-payment of rent, etc

8.—(1) In addition to and without prejudice to any other powers conferred on the Corporation by section 61 of the Act of 1955, the Corporation may make byelaws with respect to the market for all or any of the following purposes, namely:—

Market Byelaws

(a) prohibiting or regulating the bringing into the market of any article, commodity or produce intended for sale within the market or of any specified description of any such article, commodity or produce;

(b) securing the cleanliness of any land or premises within the market and any vehicle entering the market (including shops, stands and other places and vehicles where articles, commodities or produce are stored, sold or are exposed for sale or inspection) and preventing the accumulation on or in any such land, premises or vehicle, and securing the removal therefrom, of refuse;

(c) preventing the outbreak and spread of fire in the market and, in particular, for that purpose—

(i) imposing requirements with respect to the provision and maintenance of fire-fighting equipment;

(ii) imposing prohibitions, restrictions or requirements with respect to the storage, or the depositing in any place (otherwise than for storage), of such descriptions of articles, commodities, produce, containers or packing materials as appear to the Corporation to be flammable;

(iii) imposing such prohibitions, restrictions or requirements as appear to the Corporation requisite

for securing that no articles, commodities or products of any description are stored in such manner as to obstruct the use of fire-fighting equipment;

- (d) regulating the conduct of persons resorting to the market and, in particular, preserving order therein and preventing damage to, and loss of, property therein;
- (e) regulating traffic within the market (except on roads to which the Road Traffic Acts 1960 to 1967 apply) the movement, speed and parking of vehicles (including hand-propelled vehicles and conveyances) therein.

1933 c. 51.

(2) As respects byelaws made under this section the controlling authority for the purpose of section 250 of the Local Government Act 1933 shall be the Minister.

(3) The following provisions shall have effect in relation to byelaws made under paragraph (a) of subsection (1) of this section:—

- (a) The byelaws may grant exemptions from any provisions thereof or provide for the grant of exemptions by such persons as may be specified in the byelaws;
- (b) A description of any article, commodity or product may be framed by reference to any circumstances whatsoever.

Power to borrow.

9.—(1) The Corporation may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Local Government Act 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

1946 c. 58.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Application of Public Health Act 1936.

1936 c. 49.

10. The sections of the Public Health Act 1936 mentioned in Schedule 1 to this Act shall have effect as if references therein to that Act included references to this Act.

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(2) Notwithstanding the repeal effected by this section —

- (3) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section 38 of the Interpretation Act 1889.

12.—Pending the approval by the Minister under section 52 Transitional
the Act of 1955, on the application of the Corporation, of a provision
of stallages, tolls and charges, the stallages, tolls and charges
which were in force in respect of the market undertaking on
1st November, 1968, shall be deemed, for the purposes of the
provisions of the Act of 1955 which are applied to the market
undertaking by this Act, to have been approved by the Minister
under the said section 52.

Any bylaws made by the Corporation in relation to the undertaking and in force immediately before the passing of this Act shall continue in force until revoked by the Corporation.

3.7 Costs, charges and expenses preliminary to and of and Costs of Act.
In the preparing, applying for, obtaining and passing
this Act shall be paid by the Corporation out of the general
fund out of moneys to be borrowed under this Act.

SCHEDULES

SCHEDULE 1

Section 10.
1936 c. 49.

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED
TO THIS ACT

Section	Marginal note
271	Interpretation of "provide".
277	Power of councils to require information as to owner premises.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
293	Recovery of expenses, &c.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
299	Inclusion of several sums in one complaint, &c.
304	Judges and justices not to be disqualified by liability.
328	Powers of Act to be cumulative.

SCHEDULE 2

Section 11.

ENACTMENTS REPEALED

	1	2
	Enactment	Extent of repeal
1848 c. 63. 1847 c. 14. 1853 c. 24.	Provisional Order for the application of the Public Health Act 1848 to the District of Barnsley in the County of York, confirmed by the Public Health Supplemental Act 1853 (No. 1)	So much of Article 17 as the application of the M. Fairs Clauses Act 1847
1914 c. xli.	Barnsley Corporation Act 1914	Sections 44 and 45.

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